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CONSUMER ALERT: Attorney General James Warns New Yorkers of Summer Rental Scams

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With Summer Approaching, AG James Offers Tips to New Yorkers to Avoid Scams When Booking Vacation Rentals

NEW YORK – New York Attorney General Letitia James today warned New Yorkers of scams on vacation rentals and offered tips on how to avoid them as summer approaches. As millions of New Yorkers plan their getaway trips and look to rent homes, they should be mindful of scammers that misrepresent rentals or list fake homes online that do not actually exist, tricking consumers into paying and leaving them with nowhere to stay. To protect people from this fraud, Attorney General James encourages New Yorkers to verify their host and booking before making a payment. Attorney General James urges New Yorkers to report any summer scams to her office.

“Scammers don’t take the summer off,” said **Attorney General James**. “Summer plans can quickly melt if consumers aren’t careful when they book their getaway. Vacation fraud happens every year, but there are ways to avoid it and protect yourself from getting burned. School might be out, but don’t forget to do your homework — take the time to verify the host and read online reviews to ensure that vacation rentals are real and not a dupe. All year, my office is working to protect New Yorkers’ wallets from scammers, and we encourage anyone to report this fraud to our office.”

Attorney General James recommends consumers take the following precautions before booking their summer getaway:

- **Verify the host.** Make sure the renter or host has a valid address and phone number.

- **Make sure the listing has reviews and read the reviews.** Be wary of listings on websites like Airbnb or VRBO that do not have any reviews listed. When reading reviews, check for multiple reviews that repeat the same phrases — that could be a sign that the reviews are fake.
- **Check that the photos have not been stolen from another website.** Use reverse image search of photos of the rental to ensure that the photos have not been listed on another website.
- **Communicate only through the listing site before booking.** One way that scammers try to trick consumers is by first posting a listing on a site like Airbnb or VRBO, and then requiring you to communicate directly with the host outside the website or app to book the listing. Do not share your email address or phone number with the host or renter before your booking is accepted.
- **Only book with a credit card or debit card.** Use verified payment sources such as a major debit or credit card, which can be traced in the event something goes wrong. One advantage of using a credit card specifically is that you have certain protections under the Fair Credit Billing Act, which allows you to dispute unauthorized charges.
- **Only make payments through the listing site.** If using a site such as Airbnb or VRBO, make all payments through the site, as they may be able to refund you if you are later defrauded.
- **Never make wire payments or cash payments.** NEVER make a payment using a wire transfer service or money transfer service such as Western Union, Money Gram, Zelle, CashApp, or Venmo.
- **Rent security deposits.** You may be asked to make a security deposit. Generally, you cannot be required to pay more than one month’s security deposit. The owner can apply the security deposit to cover any damages caused by you or unpaid rent but otherwise must return the deposit to you at the conclusion of the rental.
- **Know your rights.** It is illegal for a host to deny a vacation rental to you based on your race, religion, national origin, sex, sexual orientation, gender identity, military status, disability, or marital status. If you believe that you have been discriminated against or harassed based on any of these protected classes, you can file a complaint with the [New York State Division of Human Rights](#).

To report a summer scam, [contact the Office of the Attorney General's Consumer Frauds Bureau](#).